

Public Redacted Open Grid Motion and Memorandum for Summary Judgment

Filed: October 6, 2025 **Synthetic docket:** SYN-DMD-25-CV-0914 **Counsel:** Tamsin Roe and Leo Marr, fictional counsel for Open Grid Archive

Open Grid Archive moves for summary judgment on its Freedom of Information Act claims against the fictional United States Department of Energy. The administrative search is not the present dispute. The questions are whether DOE adequately justified its use of Exemptions 7(E) and 7(F), discharged its independent segregability obligation, and supported the breadth of access restrictions requested for the court filings.

Open Grid asks the Court to require a more particular explanation and a line-by-line determination. It does not ask this Court to disclose a genuine cyber instruction or any live information. Every program, document, field, and person in this record is fictional, and the public exhibits replace disputed categories with nonfunctional notices.

The motion accepts that a properly described operational implementation detail may receive protection under 7(E). The public categories are [REDACTED—FICTIONAL DECISION CONDITION], [REDACTED—FICTIONAL RESPONSE ORDER], [REDACTED—FICTIONAL ESCALATION VALUE], [REDACTED—FICTIONAL DUTY ROLE], [REDACTED—FICTIONAL SAFETY REFERENCE], and [REDACTED—FICTIONAL CONTACT CHANNEL]. Open Grid challenges DOE’s extension of protection to neutral administration, its categorical 7(F) treatment, and its assertion that no further meaningful text can be separated. The later release of seventeen passages from eleven previously produced pages demonstrates that the original conclusions were not self-proving.

For those reasons, the Court should deny DOE’s anticipated cross-motion, direct an adequate record-specific review, and preserve public access to all material that can be understood without the asserted protected relationships.

Undisputed Processing Record

Open Grid requested final and superseded Grid Sentinel playbooks effective between January 1, 2022, and May 31, 2024, plus final approval and supersession instruments. The clarified scope excluded drafts, routine email, actual incident logs, telemetry, configurations, source code, credentials, access data, real-infrastructure diagrams, and personal contact fields.

DOE searched the fictional Beacon, Driftglass, and Harborline repositories. It reported 16,842 raw hits, 1,284 deduplicated candidates, forty-six files receiving custodian review, and twelve responsive records totaling 200 logical pages. Four decision records contain sixty pages, three escalation matrices contain fifty-four, three coordination appendices contain sixty-four, and two governance records contain twenty-two.

The first production transmitted 146 images. Three operational records comprising fifty-four pages were withheld completely, seven playbook records comprising 124 pages were produced with redactions, and two governance records comprising twenty-two pages were released without redaction. Of the 146 images, sixty-eight showed no blackout and seventy-eight carried at least one. DOE cited 7(E) on sixty-two redacted images, 7(F) on fifty-one, and both on thirty-five.

Open Grid does not concede that the disposition of any page was lawful. These figures establish the universe against which DOE's explanations and segregation assertions must be tested.

Governing Summary-Judgment Standard

FOIA places the burden on the agency to establish that withheld material falls within a statutory exemption. Review is de novo. An agency may rely on declarations and a Vaughn presentation, but those submissions must describe the material and connect a claimed exemption to the withholding with enough specificity for adversarial testing and meaningful judicial review.

A functional category may sometimes organize a large record. It cannot replace document-by-document judgment or a reasoned connection between the category, the protected interest, and the predicted harm. The relation between [REDACTED—FICTIONAL DECISION CONDITION] and [REDACTED—FICTIONAL RESPONSE ORDER] illustrates why function matters more than a category name. Conclusory assurances are not transformed into evidence by repetition across several records.

FOIA separately requires release of every reasonably segregable nonexempt portion. The agency must show that it actually performed that analysis. A valid exemption for one field does not automatically absorb a title, approval statement, revision entry, neutral heading, or administrative sentence located nearby.

The foreseeable-harm provision also demands attention to the interest an exemption protects unless disclosure is prohibited by law. Open Grid does not contend that a court should reveal a protected detail to test the claim. Public descriptions, controlled review, and carefully bounded findings permit scrutiny without exposing disputed information. The evidence should be assessed at that useful level rather than through an all-or-nothing presumption.

Law-Enforcement Purpose Does Not End the Inquiry

Open Grid accepts for this motion that the fictional playbooks were compiled for a qualifying law-enforcement purpose insofar as they concern prevention, recognition, and coordination of responses to unlawful attacks. That threshold follows from the asserted use of the documents, not merely their location in an agency repository.

Meeting the threshold only permits consideration of Exemption 7's subparts. It does not establish that each page is a technique, procedure, guideline, or safety-sensitive field. Governance records were released because approval and supersession facts did not organize a response. Similar administration appears within some playbooks and must be judged on its own content.

The public sample records make the distinction concrete. A revision history or publication-owner statement does not become operational merely because it shares a cover with a decision framework. Conversely, a relationship between [REDACTED—FICTIONAL DECISION CONDITION] and [REDACTED—FICTIONAL RESPONSE ORDER] may present a different question. The Court can recognize that difference without learning any concealed value.

DOE's categorical presentation often slides from purpose to coverage. It reasons that the collection supports a protective mission and then treats any field associated with the collection as protected. FOIA requires the agency to identify which statutory clause applies and why the particular withheld information fits it.

Exemption 7(E): General Knowledge and Implementation Detail

Exemption 7(E) distinguishes protected techniques and procedures, and qualifying guidelines whose disclosure could reasonably be expected to risk circumvention, from ordinary administrative information. A general public awareness that responders use triage does not necessarily reveal the nonpublic design of a particular framework. Open Grid therefore does not seek an actual trigger relationship or implementation arrangement.

DOE may protect a segment where [REDACTED—FICTIONAL DECISION CONDITION] is linked to [REDACTED—FICTIONAL RESPONSE ORDER] in a way that discloses the organization of the approved decision tree. A separate [REDACTED—FICTIONAL ESCALATION VALUE] may implicate the guideline clause if the required circumvention showing is made.

But the agency has also obscured neutral captions, administrative ownership, revision notes, and general coordination language. Its public explanation sometimes states only that placement near a protected field would reveal the field. It does not consistently explain how a particular visible fragment would expose a relationship instead of merely establishing that the record has a heading or approval history.

The Court should sustain properly supported implementation-detail redactions while requiring DOE to separate them from general material. That approach respects 7(E) without allowing a legitimate operational core to shield an entire surrounding document.

The Public Vaughn Showing Is Too General

DOE's indexes identify twelve records and use recurring field notices, but much of the explanation operates at the family level. The same asserted harms follow [REDACTED—FICTIONAL DUTY ROLE], [REDACTED—FICTIONAL SAFETY REFERENCE], and [REDACTED—FICTIONAL CONTACT CHANNEL] across materially different contexts. The reader is often told that disclosure would interfere with protective functions without being told what functional relationship creates that expectation.

The primary index acknowledges that governance records are nonoperational and that partially released playbooks contain separable administration. The supplemental index further recognizes that headings, approval text, and recordkeeping sentences can survive removal of a field. Yet DOE continues to defend broad categories without showing why an administrative use of a label carries the same risk as a genuinely protective assignment.

A meaningful Vaughn account need not expose the hidden value. It can identify the document, describe the function of the segment, state which exemption applies, and connect disclosure of that kind of information to a particular protected interest. DOE supplied portions of that structure, but its categorical safety assertions and several inseparability conclusions omit the necessary connection.

This deficiency matters because the Court otherwise cannot tell whether the category reflects document-by-document review or simply a generalized concern attached after collection.

Exemption 7(F) Requires a Concrete Safety Connection

Open Grid agrees that Exemption 7(F) does not require DOE to identify an endangered individual by name. A functional group may be protected when the agency demonstrates that disclosure could reasonably be expected to endanger someone's life or physical safety. The record must still explain why disclosure of the information at issue creates that expectation.

DOE combines [REDACTED—FICTIONAL DUTY ROLE], [REDACTED—FICTIONAL SAFETY REFERENCE], and [REDACTED—FICTIONAL CONTACT CHANNEL] under a broad human-function theory. The explanation does not distinguish a genuinely protective relationship from ordinary publication custody or record distribution. A category token cannot establish its own dangerousness.

The escalation-matrix sample illustrates the problem. DOE says a hidden role and safety reference relate to protective personnel, then infers that revealing any associated category could facilitate interference. It does not describe the functional mechanism of harm at a safe level or explain why surrounding neutral status text would contribute to it. The same generic inference is repeated for materially different appendices.

The Court should require a category-by-category nexus grounded in the actual document review. It may preserve interim protection while that showing is made. What it should not do is treat the existence of a safety-themed collection as conclusive proof for every 7(F) redaction.

Segregability Is a Distinct Statutory Duty

Even when a condition, ordering relationship, or protective assignment is exempt, DOE must release any reasonably segregable portion that remains meaningful. The public twins show that titles, approval history, and general purpose can often be expressed without [REDACTED—FICTIONAL DECISION CONDITION], [REDACTED—FICTIONAL RESPONSE ORDER], or [REDACTED—FICTIONAL DUTY ROLE] fields.

DOE's declarations describe page review but repeatedly conclude that additional words would be meaningless or would disclose placement. Those conclusions are rarely tied to a particular passage. The record does not consistently distinguish syntactic dependence from operational dependence. A sentence may need editing to read naturally after a field is removed; that does not make its independent proposition exempt.

Open Grid does not demand isolated connective words or a misleading fragment. It asks for coherent administration and coordination text. The controlled counterparts permit the Court to determine whether the public notices occupy limited semantic locations and whether other propositions survive.

The burden rests with DOE to support a line-level decision, not with the requester to guess what lies behind a blackout. A remand for a documented review would preserve any valid 7(E) protection while requiring the agency to reconsider neutral content. Summary judgment for DOE on a categorical assurance would collapse segregability into the exemption inquiry.

The Supplemental Release Undermines Finality of the First Review

During litigation, DOE revisited the preserved search exports and the twelve-record production. It found no new responsive record and did not alter the 200-page source universe. It nevertheless released seventeen additional passages on eleven already-produced pages. Six replacement images disclosed two passages each, and five disclosed one each.

That correction is material. It confirms that additional administrative text could be separated without revealing [REDACTED—FICTIONAL DECISION CONDITION], [REDACTED—FICTIONAL RESPONSE ORDER], [REDACTED—FICTIONAL ESCALATION VALUE], [REDACTED—FICTIONAL DUTY ROLE], [REDACTED—FICTIONAL SAFETY REFERENCE], or [REDACTED—FICTIONAL CONTACT CHANNEL]. The passages concerned review ownership, neutral headings, approval status, edition history, archival directions, and general coordination. None supplied an operational instruction.

Open Grid does not argue that a supplemental release proves bad faith. It shows that the initial categorical conclusions were fallible and that a focused line review yields meaningful information. DOE's supplemental materials still do not provide a sufficiently particular account for every remaining withholding, especially where a whole record stayed closed or a broad safety category was invoked.

The search evidence and the segregation evidence should not be confused. A complete search can locate all responsive records while an inadequate review withholds too much within them. Open Grid narrows this motion to exemption justification, segregation, and access; it does not seek another repository search.

Sealing Must Be Document Specific

The public has a qualified right of access to judicial records. A party seeking sealing must identify the material, explain why closure is necessary, address less restrictive alternatives, and propose an appropriate duration. The Court must provide notice and make findings that permit review.

DOE has filed public counterparts for the controlled exhibits, which is an important alternative to wholesale closure. But its consolidated request groups distinct materials under broad operational and safety descriptions. A Vaughn index, sample playbook, party memorandum, and declaration serve different judicial functions. The need to protect a fabricated label on one page does not justify sealing all text in every counterpart.

Open Grid asks the Court to keep the public versions accessible, examine the controlled counterparts in camera if useful, and limit any sealing to passages supported by particular findings. It does not ask the Court to place controlled labels on the public docket. The issue is whether entire documents or broad sets of pages may be closed on aggregate reasoning.

Duration also matters. If a controlled exhibit remains necessary through judgment and appeal, the order should say so and should allow later reconsideration. A permanent or indefinite closure without a document-specific basis would exceed the justification presented.

Relief on the Cross-Motions

The Court can resolve the legal disputes without directing immediate public disclosure of any contested operational segment. [REDACTED—FICTIONAL DECISION CONDITION], [REDACTED—FICTIONAL RESPONSE ORDER], and [REDACTED—FICTIONAL ESCALATION VALUE] may remain where supported; [REDACTED—FICTIONAL DUTY ROLE], [REDACTED—FICTIONAL SAFETY REFERENCE], and [REDACTED—FICTIONAL CONTACT CHANNEL] require a proper safety nexus. DOE has not adequately demonstrated segregation across all responsive records and should conduct renewed, documented review.

For 7(E), the Court should distinguish nonpublic implementation relationships from general administration. Any trigger, order, or guideline detail found protected may remain withheld. Titles, approval facts, neutral headings, and coordination statements should be released where they can be understood independently.

The Court should also deny broad sealing and require proposed closure to identify each judicial record and the interest served. Public counterparts should remain the default presentation. Controlled copies may be retained under bounded access while the litigation need exists.

These remedies respect both FOIA and the asserted interests. They do not presume that every concealed field is nonexempt, and they do not expose anything DOE claims could create harm. They require only the particularized reasoning and segregability determination that the statute assigns to the agency and the Court.

Conclusion

Open Grid respectfully requests judgment requiring DOE to provide a sufficiently specific Vaughn account, reassess its categorical 7(F) claims, perform and document a line-by-line segregability review, and release any additional coherent nonexempt material. Properly supported 7(E) implementation details may remain protected during that process.

Open Grid further requests an order preserving public access to redacted counterparts and limiting sealed treatment to material supported by record-specific findings after consideration of alternatives and duration. The requested relief can be entered without publishing any controlled label or purported operational relationship.

Tamsin Roe and Leo Marr certify that this public memorandum contains no information taken from a live system and no actionable cyber content. The field notices are the exact approved fictional tokens. The motion relies only on the closed synthetic record and the legal authorities presented to this fictional Court.

For Open Grid Archive, the motion is submitted on October 6, 2025. Service is made through the fictional exercise docket on Corin Pell, counsel for DOE.